

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 18, 2026, AT 8:30 A.M.

9. S-CV-0051422 EXCLUSIVE AUTO GROUP v. GENERAL MOTORS

At the direction of the Presiding Judge, the motion for summary judgment is continued to be heard by the **Honorable Trisha J. Hirashima** on **August 18, 2026, at 8:30 a.m. in Department 32.**

10. S-CV-0052516 FISHER, CHANELL v. EFREN COTA

The mediation status conference is dropped from calendar in light of the parties' joint declaration filed with the court on June 11, 2026, that includes the information required by the court.

11. S-CV-0053444 BERGFALK, BRIAN v. MLV HOLDINGS

Defendant's Motion for Summary Judgment or, in the Alternative, Summary Adjudication

Preliminary Matters

Defendant's request for judicial notice is granted.

Defendant's objections 1–4 are overruled. Defendant's objection 5 is sustained because the declaration is neither signed nor dated.

Ruling on Motion

Defendant moves for summary judgment or, in the alternative, summary adjudication as to plaintiff's complaint. A motion for summary judgment may be granted if "all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) This is compared to summary adjudication that requires a showing that there is no merit to one or more of the causes of action. (*Id.* at § 437c, subd. (f)(1).) A motion for summary adjudication proceeds "in all procedural respects as a motion for summary judgment." (*Id.* at § 437c, subd. (f)(2).) In reviewing either motion, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendant, as the moving party, bears the initial burden of establishing that "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc. § 473c, subd. (p)(2).)

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Once that burden is met, the burden shifts to the “plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense.” (*Ibid.*) Pursuant to the “golden rule” of summary judgments, “if it is not set forth in the separate statement, it does not exist.” (*California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1296.)

Plaintiff’s complaint alleges two causes of action against defendant: (1) general negligence and (2) premises liability with counts of negligence and willful failure to warn.

To state a claim for negligence and premises liability, plaintiff must establish: (1) duty, (2) breach, (3) proximate cause, and (4) damages. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.)

Defendant argues express assumption of the risk applies such that it did not owe a duty to plaintiff. “[F]or a release of liability to be held enforceable against a plaintiff, it ‘must be clear, unambiguous and explicit in expressing the intent of the parties’ [Citation.]; the act of negligence that results in injury to the releasee must be reasonably related to the object or purpose for which the release is given [Citation.]; and the release cannot contravene public policy [Citation.].” (*Sweat v. Big Time Auto Racing, Inc.* (2004) 117 Cal.App.4th 1301, 1304–5.) In the summary judgment context, as here, “the defendant bears the burden of establishing the validity of a release ‘as applied to the case at hand.’” (*Jimenez v. 24 Hour Fitness USA, Inc.* (2015) 237 Cal.App.4th 546, 554.) Importantly, “a release cannot absolve a party from liability for gross negligence.” (*Ibid.*) So, a release that attempts to absolve a party from liability for both negligence and gross negligence is enforceable as to negligence but is unenforceable as a matter of public policy as to gross negligence. (*Rosencrans v. Dover Images, Ltd.* (2011) 192 Cal.App.4th 1072, 1081.)

Gross negligence is conduct by the defendant that involves either “want of even scant care or an extreme departure from the ordinary standard of care.” (*Chavez v. 24 Hour Fitness USA, Inc.* (2015) 238 Cal.App.4th 632, 640.) In other words, “gross negligence connotes such a lack of care as may be presumed to indicate a passive and indifferent attitude toward results.” (*Ibid.*) The difference between negligence and gross negligence is “only in degree, and not in kind.” (*Anderson v. Fitness Internat., LLC* (2016) 4 Cal.App.5th 867, 881.)

Courts reviewing summary judgment motions based on the absence of a triable issue of fact as to gross negligence must resolve every reasonable doubt in favor of the plaintiffs. (*Jimenez v. 24 Hour Fitness USA, Inc.* (2015) 237 Cal.App.4th 546, 555.)

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Although generally whether a defendant's actions constitute gross negligence is a question of fact for the jury, it may be resolved at the summary judgment stage. (*Id.* at p. 555.)

Here, plaintiff signed a membership agreement with defendant that contained the following release of liability:

... using this studio owned by MLV Roseville LLV D/B/A/ StretchLab Roseville . . . involves the risk of injury to you . . . and the risks range from minor injuries to major injuries, such as catastrophic injuries including death. . . . You understand and voluntarily accept this risk and release MLV Roseville LLC . . . from all liability for any injury, including, without limitation, personal, bodily, or mental injury . . . resulting from your use of StretchLab Roseville, including any injury relating to the ordinary or gross negligence, actual or passive, of the releases . . . even if the releasees were negligent.

(UMF No. 43.)

Defendant meets its initial burden that express assumption of the risk applies such that it did not owe a duty to plaintiff because the release is clear, unambiguous, and explicit in the intent of the parties to release minor to major injuries resulting from using defendant's facilities; the alleged negligent act of defendant's employee using a percussion massage gun on plaintiff's ankle bone is reasonably related to the release of liability for using defendant's premises; and although the release does seek to improperly waive gross negligence, it nonetheless does not contravene public policy as to claims for general negligence. (UMF Nos. 36–43.) Additionally, defendant meets its burden to establish its actions do not constitute gross negligence. (UMF Nos. 6, 8–9, 11–26.)

The burden therefore shifts to plaintiff to raise a triable issue of material fact that defendant's actions constituted gross negligence such that the release does not absolve defendant's duty to plaintiff or that the release is otherwise invalid. (*Jimenez v. 24 Hour Fitness USA, Inc.* (2015) 237 Cal.App.4th 546, 555.)

Here, plaintiff does not meet its burden to establish a triable issue of material fact that defendant actions constitute gross negligence or that the release is invalid. Therefore, the motion for summary adjudication is granted as to the first cause of action for general negligence.

Separately, the motion for summary adjudication is also granted as to the second cause of action for premises liability pursuant to the same analysis because the

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elements for the two causes of action are the same and plaintiff does not raise any triable issues of material fact that defendant's action constitute gross negligence or that the release is invalid.

Accordingly, since the motion for summary adjudication is granted as to both causes of action, defendant's motion for summary judgment is granted.

12. S-CV-0054358 KOUBA, NICHOLAS v. JOHN MOURIER CONST.

Plaintiffs' Motion for Leave to File Doe Amendment to Complaint

Preliminary Matters

Plaintiffs' requests for judicial notice are granted.

Ruling on Motion

Plaintiffs' unopposed motion for leave to file Doe amendments to complaint is granted. (Code Civ. Proc., §§ 473, subd. (a)(1), 474, 576.) Plaintiffs shall file and serve the Doe amendments on or before **June 29, 2026**.

13. S-CV-0055102 LEMKE, DORA v. BARNETT, TERRY

The motion to be relieved as counsel is dropped from calendar as no moving papers were filed with the court.

14. S-CV-0055122 AYAR, SOFIA v. AMIRI, TAMIM

The motion for stay is dropped from calendar as no moving papers were filed with the court.

15. S-CV-0055350 MARTIN, MAZIE v. TWIN ROCKS ESTATE VINEYARD

The motion for preliminary approval is dropped from calendar as no moving papers were filed with the court.

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